

H C J D A 38.

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.10470/2025

Irfan Ali vs. The Station House Officer etc.

JUDGMENT

Date of hearing **28.02.2025**

Petitioner by Mr. Asad Jamal, Advocate.

State by Hafiz Muhammad Zaheer Nasir, Assistant
Advocate General.

Mr. Muhammad Naveed Umer Bhatti,
Deputy Prosecutor General.

Rafi Ullah SHO/Inspector and Sarfraz S.I.

MUHAMMAD WAHEED KHAN, J.- Petitioner, Irfan Ali, filed the instant Writ Petition before this Court, under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973, and made the following prayer: -

“It is therefore, respectfully, prayed that a bailiff be appointed to immediately recover the abductee from the custody of the respondent SHO Police Station Sabza Zar, Lahore;

The respondents No.1 and 2 be issued notices and be directed to produce and set at liberty the abductee on the same day and to explain to this Honourable Court why the abductee had been arrested and kept incommunicado without disclosing the reasons for his arrest;

Any other relief deemed fit and appropriate in the interest of justice, fairness and equity may kindly be granted”

2. This Court after taking cognizance of the matter, passed the following order on 19.02.2025:-

Through this petition, the petitioner seeks recovery of alleged detenue, namely, Nauraiz Ahmed, cousin of the petitioner, from the illegal

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and unlawful custody of respondent No.1-SHO P.S. Sabzazar, District Lahore. The petition is supported by an affidavit.

2. *Let a bailiff of this Court be deputed at the expense of the petitioner, to recover the alleged detainee, who shall search out the premises of the above mentioned police station and if found produce him before this Court on 20.02.2025.*

3. In compliance of above said order, Bailiff of the Court visited the Police Station, Sabzazar, Lahore and submitted his following report:-

“In compliance of the order dated 19.02.2025, passed by this Hon’ble Court in the above noted case, I alongwith petitioner conducted raid at Police Station Sabzazar, Lahore at 06:40 p.m., for illegal and unlawful custody of respondent No.1 (SHO) Police Station, Sabzazar, Lahore. Muhammad Sajjad (Moharrar), S.H.O. Muhammad Amjad Dogar and other Police officials were present there. After necessary introduction, I took the Roznamcha into my possession and started searching for the recovery of above named alleged detainee. In the course of searching, I found above named alleged detainee confined in the lock-up of said Police Station.

2. *On my query above named alleged detainee stated that he was captured by Police official of Police Station Nawankot, Lahore from Niazi Adda Bus Stand Lahore about **10-11 days before**. He further stated that he has not been produced before any Competent Court so far.*

3. *On my query, Muhammad Sajid (Moharrar) stated that alleged detainee Nauraiz Ahmed, is accused of Police Station Nawankot Lahore, the said Police station is situated in the same building of Police Station, Sabzazar, Lahore and both Police Station have a combine lock-up. In the meanwhile, Muhammad Abid (Moharrar) of Police Station Nawankot, Lahore put his appearance and stated that the above said detainee was arrested by Noor Hussain (ASI) in connection with notification/case FIR No.1851/2021 u/s 381/34 PPC, Police Station, Steel Town, Malir Sindh, Karachi, wherein, the said detainee is **P.O.4** and his arrest has been incorporated in the roznamcha vide Rapt No.19 dated 11.02.2025 at 11:30 am. He has further stated that in this regard vide rapt No.56 dated 13.02.2025 recorded at 05:50 p.m, Jameel (Moharrar) of Police Station Malir Karachi, was intimated over phone No.03340201537. He has further added that Bilawal Sher Muhammad, Moharrar (Investigation) of Police Station Steel Town, Karachi, was also intimated vide rapt No.55 dated 18.02.2025 recorded at 11:45 am, but uptil now no response/concerned police officials/officer were reached there. It is stated that the police of Police Station, Nawankot, Lahore did not produce the above named alleged detainee before any competent court of law till today.*

4. *It is submitted that Muhammad Abid (Moharrar) of Police Station Nawankot, Lahore has provided me copy of rapt No.19 dated 11.02.2025, copy of rapt No.56 dated 13.02.2025 and copy of rapt No.55 dated 18.02.2025.*

5. *Notices issued by the Hon’ble Court were served upon Muhammad Sajid (Moharrar), of police station Sabzazar, Lahore, with the direction*

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that respondent No.01. (SHO) Sabzazar and SHO Police Station, Nawankot, Lahore, alongwith above named alleged detainee as well as record, if any, shall appear in person, before this Hon'ble Court on 20.02.2025, to explain their version.

6. *Report is respectfully submitted for kind perusal and appropriate orders, please."*

4. Report of Bailiff reflects that the alleged detainee was arrested by the police on 11.02.2025 at 11:30 a.m, vide Rapat No.19 in case F.I.R No.185/21 under Sections 381/34 PPC, Police Station, Steel Town, District Malir, Sindh, Karachi, on 22.02.2025. Police officials including Amjad Ali Dogar, SHO, Police Station, Sabzazar, Lahore, Muhammad Nasar Ullah ASI, Rafi Ullah Inspector/SHO, alongwith Sarfraz Ahmed S.I., apprised the Court that the detention of the detainee was intimated number of times to the officials of Police Station, Steel Town, District Malir, Karachi over telephone No.0334-0201537 and different "rapats" of those intimations were also mentioned in the Roznamcha/Register, however, none of the police officials from the said police station approached them in order to take the detainee in custody till 22.02.2025. So, this Court felt that the police has not applied proper procedure while keeping the detainee in custody as according to Section 61 of Code of Criminal Procedure 1898 (Cr.P.C), the police cannot detain any person for more than 24 hours and the police was bound to produce him before the learned Area Magistrate till 12.02.2025 till 11:30 a.m (excluding the time necessary for journey) for appropriate order. After ten days of his arrest (date of arrest is 11.02.2025), on the direction of this Court, detainee/accused was produced before the learned Area Magistrate, Section 30, District Courts, Lahore for sending him to jail on judicial remand, however, concerned, Magistrate granted two days transitory remand to produce him before the learned Area Magistrate, Police Station, Steel Town, District Malir, Karachi and at the same time, learned Judicial Magistrate had directed the Capital City Police Officer (C.C.P.O), Lahore to proceed against the SHO, P.S, Nawan Kot, as per

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law, for not obeying the dictates of law. The order of the learned Judicial Magistrate Section, 30, Lahore dated 21.02.2025 reads as under:-

“Police requested for judicial remand of accused, as per true copy of the order dated 20.02.2025 the Hon’ble Lahore High Court, Lahore ordered SHO to produce the said accused before this Court on 20.02.2025. Instead afore-named accused is produced today. Also request for judicial remand contained that the accused have been arrested as per report No.19 dated 11.02.2025. As such SHO violated the mandatory provision of law therefore CCPO Lahore is directed to proceed against SHO Nawan Kot as per law. The request of police for the judicial remand of accused is rejected. Transitory remand of accused Noraiz Ahmed son of Qaim Khan is granted for two days. SHO present in the Court is ordered to produce Noraiz Ahmed son of Qaim Khan (accused) before the Area Magistrate of PS, Steel Town, District Malir Karachi on or before 23.02.2025. ”

So police officials of Police Station, Nawan Kot, Lahore vide “Rapat No.31” dated 21.02.2025 had taken the detainee to Karachi and produced him before the learned Magistrate, Police Station, Steel Town, Karachi on 23.02.2025, who ordered to send him to judicial custody on the same day in District Jail, Malir. It is important to note that even during this whole episode, while taking the accused to Karachi, for producing him before the learned Area Magistrate, Police Station, Steel Town, Karachi, the officials of Police Station, Nawan Kot, Lahore kept on informing the police Station, Steel Town, Karachi about every step/action taken by them but the Police Station concerned had never established contact with the officials of Police Station, Nawan Kot, Lahore at any point of time and the police officials from Lahore got the said accused lodged in the District Jail, Malir by themselves on 23.02.2025, without getting any help from the concerned Police Station, Steel Town, Karachi. It is also important to mention here that the detainee/accused was arrested on the basis of information taken from “Travel Eye App” from Rahber Bus Terminal on 11.02.2025, when he was travelling from Lahore to Rawalpindi, as in the said App. his status was being shown as absconder (P.O) of case F.I.R No.185/2021 under Sections 381/34 PPC Police Station, Steel Town, District Malir Karachi (Register No.4 of Police, related to the absconders and deserters) and soon after arrest it was accordingly intimated to the

concerned Police Station as observed in the preceding Paragraphs. I have asked the learned Law Officers to assist the Court on gadgets/APPs being used by the Punjab Police to arrest the absconders and deserters, the learned Law Officer after collecting information from different sources and from the High ups of the Punjab Police, informed the Court about different APPs being used by the Punjab Police i.e, “E-Police App”, “Travel Eye App”, “Hotel Eye App” and “E-Gadget App” which operate in the following manner:-

“E-Police App: It is used by the Police to detect the criminals by entering CNIC”.

“Travel Eye App: It is used at the bus stands/terminals to detect criminals by police. The cashiers of bus terminals enter CNIC of the passengers while issuing the ticket”.

“Hotel Eye App: It is used by the police in hotels to make surveillance of the hotel visitors”.

“E-gadget App: It is used by the police at mobile shops and markets to detect the stolen mobiles. The shopkeepers enter IEMI number of the mobile phones”

This Court found that these “apps” introduced by the Punjab Police are serving the purpose and the Police is effectively arresting the accused/absconders and others involved in different criminal cases all over Pakistan, hence, have great significance and a direct impact on the expeditious and prompt flow of the administration of justice.

5. On going through the relevant provisions of different laws i.e, the Constitution of Islamic Republic of Pakistan, 1973, Criminal Procedure Code 1898 (Cr.P.C), High Court Rules and Orders Volume III, Chapter 11, Part-B (Remands to Police custody), Police Rules 1934, Chapter 26, Rule 20 (Transfer of arrested persons) it is clear that they

provide different guidelines and mechanism to deal with the accused arrested by the Police in terms of Section 54 Cr.P.C or otherwise, Article 10(2) of the Constitution of Islamic Republic of Pakistan, 1973, provides as under:-

10 (2): Every person who is arrested and detained in custody shall be produced before a magistrate within a period of twenty-four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the court of the nearest magistrate, and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

Whereas, in CHAPTER XXVI of Police Order, 1934 (Arrest, escape and custody, is enshrined in the following manner:-

“26.20. Transfer of arrested persons. (1) If a police Officer lawfully arrested a person, without a warrant, in a district in which the investigation, enquiry and trial cannot be held, and the offence is non-bailable or such person cannot give bail, he shall take or send such person before the District Magistrate of 1st class or Magistrate having jurisdiction over the area and obtain an order for the transfer of the prisoner to the district in which the offence was committed”

6. According to Sections 60 and 61 of Cr.P.C, the Police Officer making arrest of accused was bound down to produce him before the Magistrate without any unnecessary delay. Same Sections are reproduced as under:-

“60. Person arrested to be taken before Magistrate or officer incharge of police station: *A police officer making an arrest without warrant shall, without unnecessary delay and subject to the provisions herein contained as to bail, take or send the person arrested before a Magistrate having jurisdiction in the case or before the officer in-charge of a police-station.*

61. Persons arrested not to be detained more than twenty-four hours: *No police officer shall detain in custody a person arrested without warrant for period longer than, under all the circumstances of the case is reasonable and such period shall not, in the absence of a special order of a Magistrate under Section -167 exceed twenty-four hours exclusive of the time necessary for the journey from the place of arrest to the Magistrate's Court.”*

And thereafter, Magistrate deals with the accused and regulates the custody of such accused in the manner provided under Section 167 of the Cr.P.C. I have inquired from the learned counsel for petitioner and the learned Law Officer and also perused the relevant laws but could not find any provision which protects the development and installation of above

said “Apps”. of the Punjab Police except one letter i.e, STANDING ORDER NO.10 OF 2020 / DEVELOPMENT AND USE OF INFORMATION TECHNOLOGY INITIATIVES / SOFTWARE APPLICATIONS BY THE PUNJAB POLICE bearing No.3703/EXEC-III dated 04.12.2020, which was issued by the office of Inspector General of Punjab Police to the All heads in Punjab which reads as under:-

Enclosed please find a copy of “Standing Order No.10/2020” regarding development, use of Information Technology Initiatives and software application, for official police work in all police units in Punjab including IC3, duly signed by the Inspector General of Police/PPO, Punjab. A copy of the subject order may be kept as ready reference in every office for information and compliance. Moreover, the same may be circulated to your branches for implementation in letter and spirit.

But till date these applications were not given the legal cover through some sub-ordinate legislation/rules and orders or otherwise.

7. At the same time, this Court reached to the conclusion that although the law provides ample mechanism and guidelines for the Police Officers who make arrest of accused persons(s) but no such guideline has been provided for police/Police Station, to whom, such accused had been required/involved in a criminal cases except Section 58 of the Cr.P.C, wherein, the Police Officer had been authorized to pursue and arrest such persons from any place in Pakistan, which is reproduced as under:-

58. Pursuit of offenders into other jurisdiction: *A police-officer may, for the purpose of arresting without warrant any person whom he is authorized to arrest under this Chapter pursue such person into anyplace in Pakistan.*

[Explanation: In this section, "police-officer" includes a police-officer acting under this Code as in Azad Jammu and Kashmir].

Explanation added by Code of Criminal Procedure (Amendment) Act, VIII of 1993.

Nevertheless, the police of Police Station, Steel Town, Karachi had not acted in terms of this provision of law.

8. It would not be out of place to mention here that the conduct/attitude, displayed by the officials of Police Station, Steel Town, Karachi is really deplorable rather dismal one, wherein, despite having

the knowledge and repeatedly, being informed by the Police Station, Nawan Kot, the former remained silent spectator and did not perform any act to affect the arrest of the accused, who was their proclaimed offender (P.O) and all the work since his arrest through the “Apps”, detaining him in police lockups and before the learned Area Magistrate at Lahore and then producing him before Judicial Magistrate Karachi and then lodging him in District Jail, Malair was done by the police officials of Police Station, Nawan Kot, Lahore. So, in the light of supra discussion, this Court recommends relevant authorities including Inspector General of Police, Punjab, Capital City Police Officer, Lahore and other quarters concerned, to take up the matter urgently, qua applications developed by the police for effecting arrest of accused/absconders, take serious steps to give this mechanism a legal coverage through some subordinate legislation or otherwise, so, that the law enforcement agencies could get full benefits from this modern technology.

9. Learned Registrar of this Court, is also directed to transmit copy of this order to Inspectors General of Police, Punjab and Sindh, respectively, in order to sensitize them about the situations, and lethargic attitude displayed by the officials of Police Station, Steel Town, Karachi, District Malair, to hold an inquiry, and if found involved, proceed against the delinquents in accordance with law. Learned Registrar of this Court is also directed to bring this matter into the notice of quarters concerned (Legislation) in order to make laws, to regularize the procedure/methods for the law enforcement agencies regarding accused/suspects arrested with the help of afore-referred computer Apps., as at the moment no Law/Procedure/Rules & Regulations are available in this regard.

10. With these observations, instant petition stands disposed of.

(MUHAMMAD WAHEED KHAN)
JUDGE

Announced in Open Court on -----.

JUDGE

Approved for reporting
*Ehsaan Ullah**